



Minor Athlete Abuse Prevention Policy

Dragon Swim

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THIS POLICY APPLIES TO:

In-Program Contact: Any contact (including communications, interactions or activities) between an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to: competition, practices, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions and/or summits.

Adult Participants: Any adult 18 years of age or older who is a:

- USA Swimming member, either athlete or non-athlete;
- Participating non-member (e.g., meet marshals, meet computer operators, timers, etc.);
- Authorized, approved or appointed by USA Swimming, Zones, Local Swimming Committees ("LSCs") or member clubs to have Regular Contact with (e.g., ongoing interactions during a 12- month period wherein the individual is in a role of active engagement) or authority over minor athletes; and/or
- Within the governance or disciplinary jurisdiction of USA Swimming, Zones, LSCs or member clubs.

GENERAL REQUIREMENT

USA Swimming, Zones, LSCs and member clubs are required to implement this Minor Athlete Abuse Prevention Policy in full. The Minor Athlete Abuse Prevention Policy must be reviewed and agreed to in writing by all athletes, parents/legal guardians, coaches and other non-athlete members of member clubs on an annual basis with such written agreement to be retained by the club or LSC, as applicable.

DEFINITIONS

Athlete: A USA Swimming athlete member.

Authority: When one person's position over another person is such that, based on the totality of the circumstances, they have the power or right to direct, control, give orders to, or make decisions for that person (e.g., when a power imbalance exists).

Billeting: A residential environment facilitated by an Adult Participant or Organization, or sanctioned event staff in which a Minor Athlete is temporarily housed in a private home with an adult or family who is not related to or known by the Minor Athlete. This lodging arrangement is in conjunction with an activity related to sport.

Dual Relationship: When an Adult Participant has a relationship with a Minor Athlete that is outside of the sport program. Examples of Dual Relationships include, but are not limited to, family members, mental health professionals, teachers, medical professionals and family friends.

Emergency Circumstances: A serious, unexpected and possibly dangerous situation that requires quick action and cannot be avoided. Emergency circumstances include, but are not limited to: a physical, mental or emotional medical emergency involving the Minor Athlete, relative of the Minor Athlete or relative of an Adult Participant; a Minor Athlete's suicidal ideations/behavior; a report of abuse; a severe weather event; and last-minute practice changes.

Electronic Communication: Includes, but not limited to, phone calls, emails, videoconferencing, video coaching, text-messaging, social media or any other electronic medium.

Event or Facility Under Partial or Full Jurisdiction: Includes any USA Swimming sanctioned event (including all travel and lodging in connection with participation in the event) or any facility that USA Swimming, Zones, LSCs or member clubs owns, leases or rents for practice, training or competition.

In-Program: Any contact (including communications, interactions or activities) between an Adult



Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Contact: Any contact (including communications, interactions or activities) between an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to contact occurring at or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Massage: Any Massage, Manual Therapy, Therapeutic and Recovery modalities, involving an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to Massage, Manual Therapy, Therapeutic and Recovery modalities occurring at or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Travel: Any transportation or travel involving an Adult Participant and any Minor Athlete(s) related to participation in sport authorized or funded by USA Swimming. Examples include, but are not limited to transportation or travel to or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

Lodging and Residential Environment: Lodging arrangements include, but are not limited to hotel stays, rentals (i.e. Airbnb, VRBO, HomeToGo, etc.), and long-term residential environments, including lodging at training sites and Billeting.

Massage: Any massage, rubdown, athletic training modality including physical modalities (e.g., stretching, physical manipulation, injury rehabilitation, etc.) and electronic or instrument assisted modalities (e.g., stim treatment, dry needling, cupping, etc.).

Minor Athlete: An athlete under 18 years of age who is a USA Swimming member or was a USA Swimming member within the previous 12 months¹.

Organization: USA Swimming, LSC or Club

Regular Contact: Ongoing interactions during a 12-month period wherein an Adult Participant is in a role of direct and active engagement with any minor athlete.

¹ This term shall also include any minor who participates in, or participated within the previous 12 months in, a non-athlete role at an Event or Facility Under Partial or Full Jurisdiction. Examples include, but is not limited to: volunteer or timer.



EXCEPTIONS

[Note: Exceptions apply only where specified]

Close-In-Age Exception: In-Program Contact between an Adult Participant and a Minor Athlete is permitted if:

- a. The Adult Participant has no authority over the Minor Athlete; and
- b. The Adult Participant is not more than four years older, determined by birthday, than the Minor Athlete.

Dual Relationship Exception: An Adult Participant has a role or relationship with a Minor Athlete that is outside of the sport program. This exception requires written consent of the Minor Athlete's parent/legal guardian at least annually, which must also identify which portion of MAAPP the parent/guardian is providing consent.

Emergency Exception: Applies to all situations in MAAPP where an Adult Participant must violate requirement(s) of the MAAPP due to an emergency. Adult Participants must carefully consider whether specific circumstances meet the threshold of an emergency circumstance.

- a. It is strongly encouraged that the Organization or Adult Participant document the emergency circumstance.



ONE-ON-ONE INTERACTIONS

I. Observable and Interruptible

All one-on-one In-Program Contact interactions between a Minor Athlete and an Adult Participant must occur at an observable and interruptible distance from another adult, except:

- a. In emergency circumstances;
- b. When a Dual Relationship exists; and/or
- c. When the Close-In-Age Exception applies.



MEETINGS AND INDIVIDUAL TRAINING SESSIONS

I. Meetings

- a. Meetings between a Minor Athlete and an Adult Participant may only occur if another adult is present and where interactions can be easily observed and at an interruptible distance from another adult.
- b. If a one-on-one meeting takes place, the door to the room must remain unlocked and open. If available, it must occur in a room that has windows, with the windows, blinds, and/or curtains remaining open during the meeting.
- c. Meetings must not be conducted in an Adult Participant or Athlete's hotel room or other overnight lodging location during In-Program Travel.

II. Meetings with Licensed Mental Health Care Professionals, Health Care Providers,

If a licensed mental health care professional, health care provider, and/or a student under the supervision of a licensed mental health care professional or licensed health care provider, meets one-on-one with a Minor Athlete at an Event or Facility Under Partial or Full Jurisdiction of Organization in conjunction with participation, the meeting must be observable and interruptible by another adult, except if:

- a. The door remains unlocked;
- b. Another adult is present at the facility;
- c. The other adult is advised that a closed-door meeting is occurring although the Minor Athlete's identity does not need to be disclosed;
- d. When appropriate and not violating a providers professional licensure, the **Organization Name** is notified that the licensed mental health care professional, health care provider, and/or a student under the supervision of a licensed mental health care professional or licensed health care provider, will be meeting with a Minor Athlete, whose name does not need to be disclosed; and
- e. The licensed mental health care professional, health care provider, and/or student under the supervision of a licensed mental health care professional or licensed health care provider, obtains consent consistent with applicable laws and ethical standards, which can be withdrawn at any time.

III. Individual Training Sessions

- a. In-Program one-on-one individual training sessions outside of the regular course of training and practice between Adult Participants and Minor Athletes must be observable and interruptible by another adult, except:
 - i. When a Dual Relationship exists; and/or
 - ii. When the Close-In-Age Exception applies.
- b. The Adult Participant providing the individual training session must receive advance, written consent from the Minor Athlete's parent/legal guardian at least annually, with a copy provided to the **Organization**, which can be withdrawn at any time.
- c. Parents/legal guardians must be allowed to observe the individual training session.

[Recommended] Prior to parents/guardians providing consent, said parent/guardian complete the U.S. Center for SafeSport's education and training on child abuse.



ELECTRONIC COMMUNICATIONS

I. Content

All Electronic Communication from Adult Participants to Minor Athletes must be professional in nature.

II. Open and Transparent

- a. If an Adult Participant communicates one-on-one with a Minor Athlete via Electronic Communications, the Minor Athlete's parent/legal guardian, or another adult family member, must be copied or included. If a Minor Athlete communicates to the Adult Participant privately first, said Adult Participant must copy or include the Minor Athlete's parent/legal guardian, or another adult family member, on any Electronic Communication response to the Minor Athlete. Adult Participants must only use Electronic Communication platforms that allow for Open and Transparent communication.
- b. The following exceptions apply to Section II(a):
 - i. In emergency circumstances;
 - ii. When a Dual Relationship exists; and/or
 - iii. When the Close-In-Age Exception applies.
- c. When an Adult Participant communicates electronically to the entire team or any number of Minor Athletes on the team, said Adult Participant must copy another Adult Participant.

III. Requests to Discontinue

Parents/legal guardians may request in writing that their Minor Athlete not be contacted through any form of electronic communication by **Organization** or by an Adult Participant subject to this Policy. **Organization** and/or Adult Participant must abide by any such request that the Minor Athlete not be contacted via electronic communication, or included in any social media post, absent emergency circumstances.

IV. Hours

Electronic communications must only be sent between the hours of 5:00 a.m. and 10:00 p.m. local time for the location of the Minor Athlete, unless emergency circumstances exist, or during competition travel.

V. Prohibited Electronic Communication

- a. Adult Participants are not permitted to maintain private social media connections with Minor Athletes and such Adult Participants are not permitted to accept new personal page requests on social media platforms from Minor Athletes, unless the Adult Participant has a fan page, or the contact is deemed as celebrity contact as opposed to Regular Contact. Existing social media connections with Minor Athletes must be discontinued. Minor Athletes may "friend", "like" or "follow" USA Swimming's official page.
- b. Adult Participants must not send private, instant or direct messages to a Minor Athlete through social media platforms.
- c. The following exceptions apply to Section V:
 - i. When a Dual Relationship exists; and/or
 - ii. When the Close-In-Age Exception applies.



IN-PROGRAM TRAVEL AND LODGING AND RESIDENTIAL ENVIRONMENTS

I. Transportation

- a. During In-Program Travel, observable and interruptible environments must be maintained.
- b. An Adult Participant must not transport a Minor Athlete one-on-one during In-Program Travel and must always transport at least two Minor Athletes, who are at least 8 years of age, or another Adult Participant except:
 - i. In emergency circumstances;
 - ii. When a Dual Relationship exists;
 - iii. When the Close-In-Age Exception applies; and/or
 - iv. The Minor Athlete's parent/legal guardian has provided, at least annually, written consent for the Adult Participant to transport the Minor Athlete one-on-one, which can be withdrawn at any time.
- c. Adult Participants, including team managers and chaperones, who travel with USA Swimming athletes must be USA Swimming non-athlete members of USA Swimming.

[Recommended]

Adult Participants who are parents/legal guardians of Minor Athletes must pick up their Minor Athlete first and drop off their Minor Athlete last in any shared or carpool travel arrangement.

[Recommended]

Prior to parents/guardians providing consent, said parent/guardian complete the U.S. Center for SafeSport's education and training on child abuse.

II. Lodging and Residential Environments

- a. An Adult Participant must not share a lodging arrangement including, but not limited to hotel stays, rentals (i.e. Airbnb, VRBO, HomeToGo, etc.), and long-term residential environments, including lodging at training sites and Billeting, with an Athlete.
- b. During In-Program Travel, all In-Program Contact in a lodging arrangement including, but not limited to hotel stays, rentals (i.e. Airbnb, VRBO, HomeToGo, etc.), and long-term residential environments, including lodging at training sites and Billeting, between an Adult Participant and a Minor Athlete must be observable and interruptible.
- c. During In-Program Travel, when doing room checks, two-deep leadership (two Adult Participants should be present) and observable and interruptible environments must be maintained.
- d. The following exceptions apply to II(a), (b) and (c):
 - i. When a Dual Relationship exists, the Adult Participant is not a coach, and the Minor Athlete's parent/legal guardian has provided advance, written consent for the lodging arrangement; and/or
 - ii. When the Close-In-Age Exception applies and the Minor Athlete's parent/legal guardian has provided advance, written consent for the lodging arrangement.
- e. Minor Athletes should be paired to share a lodging arrangement including, but not limited to hotel stays, rentals (i.e. Airbnb, VRBO, HomeToGo, etc.), and long-term residential environments, including lodging at training sites and Billeting, with other Minor Athletes of the same competition category and of similar age.
- f. Adult Participants, including team managers and chaperones, who lodge with USA Swimming athletes must be USA Swimming non-athlete members of USA Swimming.

III. Written Consent

A Minor Athlete's parent/legal guardian must provide written consent, at least annually, for all In-Program Travel and lodging during In-Program Travel, which can be withdrawn at any time.

IV. Meetings

- a. Meetings during In-Program Travel must be conducted consistent with the One-on-One



- Interactions section of this Policy (e.g., any such meeting must be observable and interruptible).
- b. Meetings must not be conducted in an Adult Participant or athlete's hotel room or other overnight lodging location during In-Program Travel.

[Recommended]

Prior to parents/guardians providing consent, said parent/guardian complete the U.S. Center for SafeSport's education and training on child abuse.



LOCKER ROOMS AND CHANGING AREAS

- I. **Requirement to Use Locker Room or Changing Area**
The designated locker room or changing area must be used when an athlete or Adult Participant changes, in whole or in part, into or out of a swimsuit when wearing just one suit (e.g., deck changing is prohibited).
- II. **Observable and Interruptible**
All In-Program Contact between Adult Participants and Minor Athletes in a locker room, changing area or similar space must be observable and interruptible, except:
 - a. In emergency circumstances;
 - b. A Dual Relationship exists; and/or
 - c. The Close-In-Age exception applies.
- III. **Private or Semi-Private Space for Minor Athletes**
Organization must provide a private or semi-private place for Minor Athletes that need to change clothes or undress at Events or Facilities Under Partial or Full Jurisdiction of Organization.
- IV. **Use of Recording Devices**
Use of any device's (including a cell phone's) recording capabilities, including voice recording, still cameras and video cameras in locker rooms, changing areas, or similar spaces by a Minor Athlete or an Adult Participant is prohibited.
- V. **Undress**
Adult Participants must not remove their clothes or behave in a manner that intentionally or recklessly exposes his or her breasts, buttocks, groin or genitals to a Minor Athlete under any circumstance. An Adult Participant must not request a Minor Athlete to expose the Minor Athlete's breasts, buttocks, groin or genitals to the Adult Participant under any circumstance. Nothing in this section shall be construed to apply to areas of the body exposed while wearing swimwear which conforms to the current concept of the appropriate for the individual's competition category.
- VI. **Showers**
 - a. Adult Participants must not shower with Minor Athletes unless:
 - i. The Adult Participant meets the Close-in-Age Exception; and/or
 - ii. The shower is part of a pre- or post-activity rinse while wearing swimwear.
 - b. Parents/legal guardians may request in writing that their Minor Athlete(s) not change or shower with Adult Participants during In-Program Contact. Organization must abide by such a request.
- VII. **Monitoring**
Organization must regularly and randomly monitor the use of locker rooms and changing areas to ensure compliance with this Policy. Locker rooms and changing areas may be monitored by use of the following methods:
 - a. Conducting a sweep of the locker room or changing area before athletes arrive;
 - b. Posting staff directly outside the locker room or changing area during periods of use;
 - c. Leaving the doors open when adequate privacy is still possible; and/or
 - d. Making occasional sweeps of the locker rooms or changing areas with women checking on female locker rooms and men checking on male locker rooms.

Every effort must be made to recognize when a Minor Athlete goes to the locker room or changing area during practice and competition, and, if the Minor Athlete does not return in a timely fashion, to check on the Minor Athlete's whereabouts.
- VIII. **Media and Championship Celebrations in Locker Rooms**
Organization may permit recording or photography in locker rooms to highlight a sport or athletic accomplishment if:
 - a. Parent/legal guardian consent has been obtained, when possible; and
 - b. Organization approves the specific instance of recording or photography; and



- c. Two or more Adult Participants are present; and
- d. Everyone is fully clothed.

[Recommended] If a parent/legal guardian enters a locker room or changing area, it must only be a parent/legal guardian of the same competition category and the parent/legal guardian should notify a coach or administrator in advance.



MANUAL THERAPY, THERAPEUTIC, AND RECOVERY MODALITIES

I. General Requirement

Any In-Program Massage performed on an athlete must be conducted in an observable and interruptible location and must be performed by a licensed massage therapist or other certified professional. However, even if a coach is a licensed massage therapist, the coach must not perform a rubdown or massage of an athlete under any circumstance.

II. Additional Minor Athlete Requirements

- a. Written consent by a parent/legal guardian must be obtained in advance at least annually by the licensed massage therapist or other certified professional which can be withdrawn at any time.
- b. Parent/legal guardians must be allowed to observe the Massage, except for competition or training venues that limit credentialing.
- c. Any Massage of a Minor Athlete must be done with at least one other Adult Participant physically present and must never be done with only the Minor Athlete and the person performing the Massage in the room.
- d. Any Massage of a Minor Athlete must be performed with the Minor Athlete fully or partially clothed, ensuring that the breasts, buttocks, groin or genitals are always covered. Nothing in this section shall be construed to apply to areas of the body exposed while wearing swimwear which conforms to the current concept of the appropriate for the individual's competition category.
- e. The provider must narrate the steps in the modality before taking them, seeking consent of the Minor Athlete throughout the process.

[Recommended]

Prior to parents/guardians providing consent, said parent/guardian complete the U.S. Center for SafeSport's education and training on child abuse.

[Recommended]

Any Massage of a Minor Athlete must only occur after a proper diagnosis from a treating physician and be done in the course of care according to the physician's treatment plan



APPENDIX A
[REQUIRED BY U.S. CENTER FOR SAFESPORT FOR INCLUSION AS APPENDIX TO THE USA
SWIMMING MINOR ATHLETE ABUSE PREVENTION POLICY]

ORGANIZATIONAL REQUIREMENTS FOR EDUCATION & TRAINING AND PREVENTION POLICIES

All NGBs, LAOs, and the USOPC (the “Organization”) must implement proactive policies designed to prevent abuse. These organizational requirements are described below.

A. Organizational Requirements for Education & Training

1. USA Swimming must track whether Adult Participants under its jurisdiction complete the required training listed in Part I.
2. USA Swimming must, every 12 months, offer and, subject to parental consent, give training to minor athletes on the prevention and reporting of child abuse.
 - a. For training to Minor Athletes, USA Swimming must track a description of the training and how the training was offered and provided to Minor Athletes.
 - b. USA Swimming is not required to track individual course completions of Minor Athletes.
3. USA Swimming must, every 12 months, , offer training to parents on the prevention and reporting of child abuse.
 - a. For training to parents, USA Swimming must track a description of the training and how the training was offered and provided to parents.
 - b. USA Swimming is not required to track individual course completions of parents.

B. Required Prevention Policies and Implementation

1. USA Swimming must develop minor athlete abuse prevention policies to limit one-on-one interactions between Minor Athletes and Adult Participants. These policies must contain the mandatory components of the Center’s model policies in Part III. These model policies cover:
 - a. Meetings
 - b. Individual Training Sessions
 - c. Manual Therapy, Therapeutic, and Recovery Modalities
 - d. Locker rooms and changing areas
 - e. Electronic communications
 - f. Transportation
 - g. Lodging and Residential Environments
2. The policies must be approved by the Center as described in subsection (C) below. The policies may include the recommended components in Part III and the recommended policies in Part IV. Given the uniqueness of each sport, however, some recommended components or policies may not be feasible or appropriate. An Organization may choose to implement stricter standards than the model policies.
3. USA Swimming must also require that its LAOs implement these policies within each LAO.
4. USA Swimming, Zones, LSCs and member clubs must implement these policies for all In-Program Contact.
 - a. At sanctioned events and facilities partially or fully under its jurisdiction, the organization
 - b. must take steps to ensure the policies are implemented and followed.
 - c. For In-Program Contact that occurs outside an Organization’s sanctioned event or facilities, implementing these policies means:
 - i. Communicating the policies to individuals under its jurisdiction;
 - ii. Establishing a reporting mechanism for violations of the policies;
 - iii. Investigating and enforcing violations of the policies.



USA Swimming must have a reporting mechanism to accept reports that an Adult Participant is violating the Organization's minor athlete abuse prevention policies. USA Swimming must appropriately investigate and resolve any reports received, unless the violation is reported to the Center and it exercises jurisdiction over the report. This requirement is in addition to requirements to report abuse under the SafeSport Code.

C. Policy Approval and Submission Process

1. USA Swimming may adopt the mandatory minimum requirements of the MAAPP as-is or adapt it to fit their needs. Regardless, each Organization must submit their policies to the Center at compliance@safesport.org for review and approval by April 1, 2024. The Center will approve, approve with modifications, or deny the policies. If the Center denies the proposed policy, the mandatory components of Part III become the default policy until the Center approves the policy.
2. USA Swimming must require their LAOs to incorporate the mandatory components of Part III. USA Swimming may require that their LAOs implement the USA Swimming's policies, which may be more stringent than the policies in Part III.
3. The mandatory components of Part III will serve as the default policy for any organization that fails to develop its own policy as required by this section. Any changes made to USA Swimming's MAAPP after the policy is approved must be submitted to the Center for approval. The previously approved MAAPP will remain in effect until written approval is provided to USA Swimming from the Center.